

Turning to the first of the *NBC Subsidiary* findings, in footnote 46 *NBC Subsidiary* listed examples of various interests that courts have identified as potentially constituting an overriding interest to justify closure of courtroom proceedings and by inference sealing otherwise open court documents. They include an accused's interest in a fair trial; a civil litigant's right to a fair trial; protection of minor victims of sex crimes from further trauma and embarrassment; privacy interests of a prospective juror during individual voir dire; protection of witnesses from embarrassment or intimidation so extreme that it would traumatize them or render them unable to testify; protection of trade secrets; protection of information within the attorney-client privilege; enforcement of binding contractual obligations not to disclose; safeguarding national security; ensuring the anonymity of juvenile offenders in juvenile court; ensuring the fair administration of justice; and preservation of confidential investigative information. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1222, fn. 46, 86 Cal.Rptr.2d 778, 980 P.2d 337.)

Here, Petitioner request to seal of proprietary business and financial information, including its Incentive and Compensation and Change Control Plan and related agreements are the type of overriding interest *NBC Subsidiary* that justify sealing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506046	ESPARZA VS CR&R INCORPORATED	MOTION TO BE RELIEVED AS COUNSEL FOR RICK ESPARZA

Tentative Ruling: Plaintiff's Motion to be Relieved as Counsel is granted upon compliance with CRC §3.1362(d).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600253	MALHOTRA VS RIVIAN AUTOMOTIVE, INC.	DEMURRER TO ANSWER ON COMPLAINT

Tentative Ruling: Plaintiff's Demurrer as to the 28th and 44th Causes of Action is sustained, and overruled as to the remainder.

The California Code of Civil Procedure provides three grounds for a demurrer to an answer:

- a) The answer does not state facts sufficient to constitute a defense.
- b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.
- c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.

CCP § 430.20. CCP § 430.050 provides that a demurrer to an answer may be taken in whole or to one or more of the defenses.

CCP § 430.20(a) provides that a demurrer to an answer be made on the ground that an answer "does not state facts sufficient to constitute a defense." However, there are

no reported cases addressing the factual detail required to plead an affirmative defense. As such, once the court entertains a demurrer to an answer, it invites endless demurrers to the successive amended answers because the amount of facts defendant must plead is unknown.

While not addressing a demurrer to an answer, the case of *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367 is instructive. There, the court set forth the historic purpose for permitting a demurrer to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiffs made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. (Id. at 384-85.) The summary judgment statute, however, was amended in 1992, eliminating the requirement. (See *Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to affirmative defenses, the presence of stray defenses are merely surplusage, and a demurrer to an answer accomplishes little more than harassing the answering party. Perhaps more importantly, a pleading need only give fair notice of the issues involved. (See, e.g., *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; Weil & Brown, Cal. Practice. Guide: Civ. Pro. Before Trial (The Rutter Group 2015), § 6:128.) To the extent that a party requires clarification, they may propound Form Interrogatory 15.1 for a statement of all facts upon which affirmative defenses are based.

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; see also *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 .) The burden is on the party opposing the demurrer to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Pleading at Issue

Defendant argues the demurrer is moot because Defendant has filed a Second Amended Pleading which makes the First Amended Pleading obsolete. Every party has the right to amend its pleadings once without leave of court. (*Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 574.) If Plaintiff has demurred to or filed motion to strike the answer, defendant can amend the answer without leave up to the date for filing opposition to the demurrer or motion to strike. After that date, defendant may amend the answer upon stipulation of the parties. (CCP §472.)

Here is a timeline of the relevant events in this case:

January 6, 2026	Complaint filed
March 26, 2026	Answer filed
April 9, 2026	Plaintiff filed Demurrer to Answer
April 23, 2026	Defendant filed First Amended Answer (FAA)
May 5, 2026	Plaintiff filed Demurrer to FAA
May 28, 2026	Defendant filed Opposition to Demurrer to FAA

To date, no Second Amended Answer has been filed with the Court. As Plaintiff notes, Defendant has already filed an amended pleading once without leave of court and any subsequent amended pleadings would require leave of court. Defendant has not sought leave of court to file a Second Amended Answer.

Defendant's Opposition is incorrect. The Demurrer to the FAA is not moot because there is no Second Amended Answer that supersedes the FAA. Accordingly, the court must address the merits of the demurrer to the FAA.

Plaintiff challenges the 3rd, 9th-26th, 29th, 31st, 34th, 37th-43rd, and 45th Affirmative Defenses arguing they are insufficient because they simply allege legal conclusions and do not allege any facts to constitute a defense. Plaintiff argues these defenses raise "new matter" under CCP §431.30(b).

Affirmative defenses can only be understood relative to the pleading to which an answer responds. In the present case, the factual allegations of the complaint are sparse, and in the absence of discovery, the challenged affirmative defenses are appropriately pleaded. To the extent that Plaintiff requires further clarification, they may propound Form Interrogatory 15.1 for a statement of all facts upon which the affirmative defenses are based.

Plaintiff also challenges the 7th Affirmative Defense (SOL), 44th Affirmative Defense (Arbitration), and 28th Affirmative Defense (Reservation of Rights). The 7th Affirmative Defense is sufficiently pled as Defendant identifies the relevant subdivision of the sections on which it relies and complies with CCP §458, which states: "In pleading the statute of limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of section _____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure"

The 44th and 28th Affirmative Defenses for arbitration and reservation of rights are not affirmative defenses.